

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
FLORENCE DIVISION

Mattie P. Burgess,

Plaintiff,

vs.

The United States of America,

Defendant.

CASE NUMBER: 4:25-cv-13210-JD

COMPLAINT

Plaintiff, complaining of the Defendant, alleges and says:

1. This action arises under and is brought pursuant to the Federal Tort Claims Act, 28 U.S.C. §1346(b)(1), as hereinafter will fully appear.
2. Plaintiff Mattie P. Burgess is a resident and citizen of the State of South Carolina, County of Kingstree within the District of South Carolina and within the jurisdiction of this court.
3. This action is brought by Plaintiff against the Defendant, United State of America, acting through the General Services Administration (GSA) a federal agency of Defendant, for loss of property and personal injury caused by a federal employee's negligent or wrongful act or omission while operating a government vehicle within the scope of his office or employment, under circumstances where the United States, if a private person, would be liable to the Plaintiff in accordance with the law of South Carolina where the act or omission occurred.
4. Venue is proper in this Court in that all, or a substantial part, of the acts and/or omissions forming the basis of these claims –i.e., the accident resulting in Mattie P. Burgess's injuries –occurred in the District of South Carolina, Florence Division.

5. That on or On November 2, 2023, at approximately 12:12 PM , Plaintiff Mattie P. Burgess was driving her 2016 Mazda vehicle in Florence County, South Carolina. Defendant's vehicle was parked illegally on bridge, while performing duties in the course of and scope of his/her employment with the federal government. The employee breached this duty by negligently and unlawfully parking the government vehicle on a bridge in violation of South Carolina Code Section 56-5-2530 and by engaging in other negligent conduct. Defendant made no effort to make their vehicle more visible, causing Plaintiff to wreck, when they suddenly encountered the Defendant's Vehicle.
6. On or about November 7, 2024, Plaintiff filed Standard Form 95, Claim for Damage, Injury, or Death, with the General Services Administration in the amount of \$ 2,015,000, seeking compensation for damages arising from the motor vehicle accident described herein.
7. That the aforesaid negligence, carelessness, recklessness, willfulness, and wantonness of the Defendant, their agents, servants, and employees, caused the aforementioned occurrence and consisted, among other things, of the following:
 - a. In parking their vehicle on a bridge in a negligent manner.
 - b. In failing to make their vehicle more visible by readily available means (hazard lights, road flares, reflective triangles, etc)
 - c. In failing to keep a proper lookout;
 - d. In failing to exercise the degree of care which a reasonably prudent person would have exercised under the same or similar circumstances.
8. That by reason of and in consequence of the aforesaid negligence, carelessness, recklessness, willfulness and wantonness of the Defendant, their agents, servants and

employees, and as a direct and proximate result thereof, the collision referred to above occurred, resulting in injuries to Plaintiff in and about her entire body, including injuries to her right arm, right hip, neck and back and other partes of her body, requiring treatment at requiring treatment at hospitals, medical care and other medical treatment, by reason of which Plaintiff has been caused to expend monies for doctors and other medical expenses, and will be caused to expend monies for such care in the future; she has suffered, continues to suffer and will in the future suffer pain and mental anguish; she has been and will in the future be prevented from engaging in normal activities and she lost wages and gains she otherwise would have made and her earning capacity has been diminished; and she has been deprived of the enjoyment of persons in like circumstances and has been otherwise damaged, all to her damage.

WHEREFORE, Plaintiff prays for judgment against the Defendant for such sums as will fully, fairly, and justly compensate Plaintiff and for such other and further relief as may be appropriate.

s/Robert J. Wyndham
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October 28, 2025

Attorneys for Plaintiff